



A COMMUNITY OF CHOICE

**Planning and Development Department**  
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001  
(Phone) 307-637-6282 (Fax) 307-637-6366

## MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council  
From: Seth Lloyd  
Subject: UDC-22-00029 / College & Charles Zone Change  
Date: March 14, 2022

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**Background:**

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 3/14/2022
- Public Services Committee 3/22/2022
- Second reading 3/28/2022
- Public Services Committee 4/5/2022
- Third and final reading 4/11/2022

**Planning Commission Recommendation:**

The Planning Commission heard this item at their March 7, 2022 meeting and recommended the Governing Body approve this application by a unanimous vote.

The Planning Commission Staff report is attached and has not been changed.

**Attachments:**

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. \_\_\_\_\_

**ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MUB MIXED-USE BUSINESS EMPHASIS TO CB COMMUNITY BUSINESS FOR LAND LOCATED SOUTHEAST OF THE INTERSECTION OF COLLEGE DRIVE AND CHARLES STREET.”**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on March 7, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as: the north ½ of Tracts 7 & 8, Sunnyside Addition, 2<sup>nd</sup> Filing (less an 8,325sqft portion to State Highway 212), City of Cheyenne, Laramie County, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

**(THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK)**

**FIRST READING:**

\_\_\_\_\_

**SECOND READING:**

\_\_\_\_\_

**THIRD AND FINAL READING:**

\_\_\_\_\_

\_\_\_\_\_  
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

\_\_\_\_\_  
KRISTINA F. JONES, CITY CLERK

publish date: \_\_\_\_\_



A COMMUNITY OF CHOICE

## Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

### CITY OF CHEYENNE PLANNING COMMISSION

MARCH 7, 2022

#### STAFF REPORT

**FILE:** UDC-22-00029: College & Charles – Zone Change

**REQUEST:** A request to rezone approximately 1.9 acres of land from MUB Mixed-use Business Emphasis to CB Community Business

**LOCATION:** Southeast of the intersection of College Drive and Charles Street

**APPLICANT:** National Care Development LLC

**AGENT:** Mark Stec

**OWNER:** Albert N. Simpson

**ZONING:** MUB Mixed-use Business Emphasis

**FUTURE LAND USE:** Mixed-use Commercial

**PURPOSE:** To allow construction of a commercial business

**PREPARED BY:** Seth Lloyd, Planner II - Development



**RECOMMENDED MOTION:**

Move to **approve** the rezoning of the N½ of Tracts 7 and 8 (less 8,325sqft to St Hwy), Sunnyside Addition, 2<sup>nd</sup> Filing to CB Community Business as shown in the attached zone change map, noting that the project meets the review criteria for approval.

**APPLICABLE CITY CODE SECTION(S) AND PLANS:**

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

**BACKGROUND:**

This zone change application proposes changing the zoning from MUB Mixed-use Business to CB Community Business for 1.9 acres of land. The land is currently vacant. The property is anticipated to be developed in the future with a medical care facility and drive through facility on the southern portion of the site. The northern portion of the site has no proposed uses at this time.

**SURROUNDING LAND USE AND ZONING:**

|                     | <b>Future Land Use Designation</b> | <b>Zoning District</b>          | <b>Land Use</b>       |
|---------------------|------------------------------------|---------------------------------|-----------------------|
| <b>Subject Site</b> | Mixed-use Commercial               | MUB Mixed-Use Business Emphasis | Vacant                |
| <b>North</b>        | Urban Residential                  | CB Community Business           | Vacant and Commercial |
| <b>South</b>        | Mixed-use Commercial               | PUD (ORD 3664)                  | Multifamily           |
| <b>East</b>         | Urban Residential                  | County MU Mixed Use             | Single-family         |
| <b>West</b>         | Mixed-use Commercial               | MUB                             | Single-family         |

**ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:**

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

**1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)**

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. Plan Cheyenne also encourages infill development (although it is not the intent of the plan to change existing, stable neighborhoods).

The Future Land Use Designation for this property is Mixed-use Commercial. Areas to the west and south are also designated Mixed-use Commercial. The areas to the north and east are designated Urban Residential. The intersection of College and Pershing is designated as an Activity Center. The subject property is roughly 1,000' from that intersection.

According to comprehensive plan the optimal City zone for the subject property's future land use designation of Mixed-use Commercial is MUB. However, CB zoning provides for commercial development and is generally encouraged near activity centers.

Based on the policies and future land use map, CB Community Business zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

**2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

This property, and surrounding property to the east and west, are currently zoned with mixed-use zoning designations. Although these nearby properties are currently developed with largely single-family uses, all of them could redevelop with commercial uses (compatible with the proposed CB zoning). The western properties' future land use designation is Mixed-use Commercial, which would also anticipate future commercial development.

The property to the south is zoned with a high-density residential PUD. The PUD is already bordered on south by a CB-zoned area. This property to the south has the future land use designation of Mixed-use Commercial.

The property to the north is zoned CB and is only partially developed with commercial uses.

The future land use designation to the north and east is Urban Residential, however these properties are zoned with commercial and mixed-use zones, and the future land use map is meant to be a guide, not a 'second zoning map' – the location adjacent to a major thoroughfare and mixed-use future land use designations means that the 'spillover' of commercial zoning is acceptable.

The proposed CB zoning would match existing zoning to the north and would be compatible with the development patterns in the vicinity.

The proposed zone change for the subject property **complies** with review criterion 2.

**3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The property is currently zoned MUB, which requires buildings to be brought closer to the street and have a pedestrian-oriented feel. Although Charles Street may provide some opportunity to be built with a pedestrian-centered development, College Drive is a major, WYDOT right-of-way with more limited opportunity to provide the streetscape anticipated by MUB zoning. The CB

zone is intended for more automobile-centric development. The MUB zone allows a variety of commercial and residential uses, while the CB zone is more commercial focused. This location along a major thoroughfare is more likely to develop with commercial-style uses. The specifically-proposed use associated with this zone change is allowed in both zone districts.

The proposed zone change **complies** with review criterion 3.

**4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The existing block is within the anticipated size for regional commercial development associated with CB zoning. However, it is much larger than anticipated for mixed-use development. Mixed-use development anticipates smaller blocks than regional commercial centers, so the proposed CB zoning is compliant with block sizes, while the current MUB zoning is not. The block is largely already developed and limited options are available to create meaningful street network connections. No additions to the street network are proposed.

There are no existing approved accesses to the subject property, and it is unlikely WYDOT would allow another access off of College at this location (no matter the zoning). Development of the property would require access off of Charles or a shared access with an adjacent property.

Infrastructure (streets and utilities) exist in the area, but improvements may be required with development.

The proposed zone change for the subject property **complies** with review criterion 4.

**5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The CB zone is intended for larger commercial uses serving the community as a whole and is applicable in activity centers. Internal circulation between adjacent sites is encouraged. The CB zone applies commercial design standards.

This property is adjacent to CB zoning (to the north), and the proposed zone change is effectively an expansion of an existing CB zone district which meets the intent and applicability of the CB zone.

The proposed zone change for the subject property **complies** with review criterion 5.

**6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)**

The specific development proposed in concert with this rezoning is a commercial business which would be allowed in either the current or proposed zone. The purpose of the zone change is to modify the required setbacks and building design standards. Should the proposed development not be executed after approval, there are also a number of commercial uses which would be eligible to be established at this location.

The proposed zone change **complies** with review criterion 6.

**7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)**

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

**8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)**

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

**CONFORMANCE WITH APPLICABLE PLANS:**

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The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

**STAFF REVIEW:**

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Through the review process, review comments were received expressing the appropriateness of the CB zone at this location and concerns about access off of College.

**CONCLUSION:**

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Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The CB zone is appropriate based on the future land use map, surrounding zoning, and surrounding development patterns.

**ALTERNATIVES:**

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1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

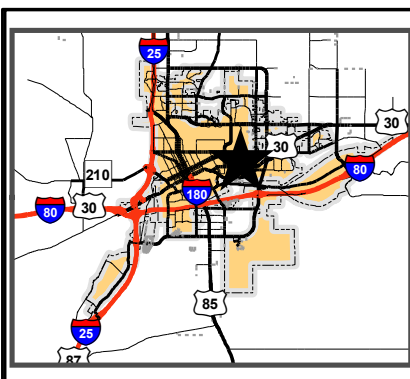
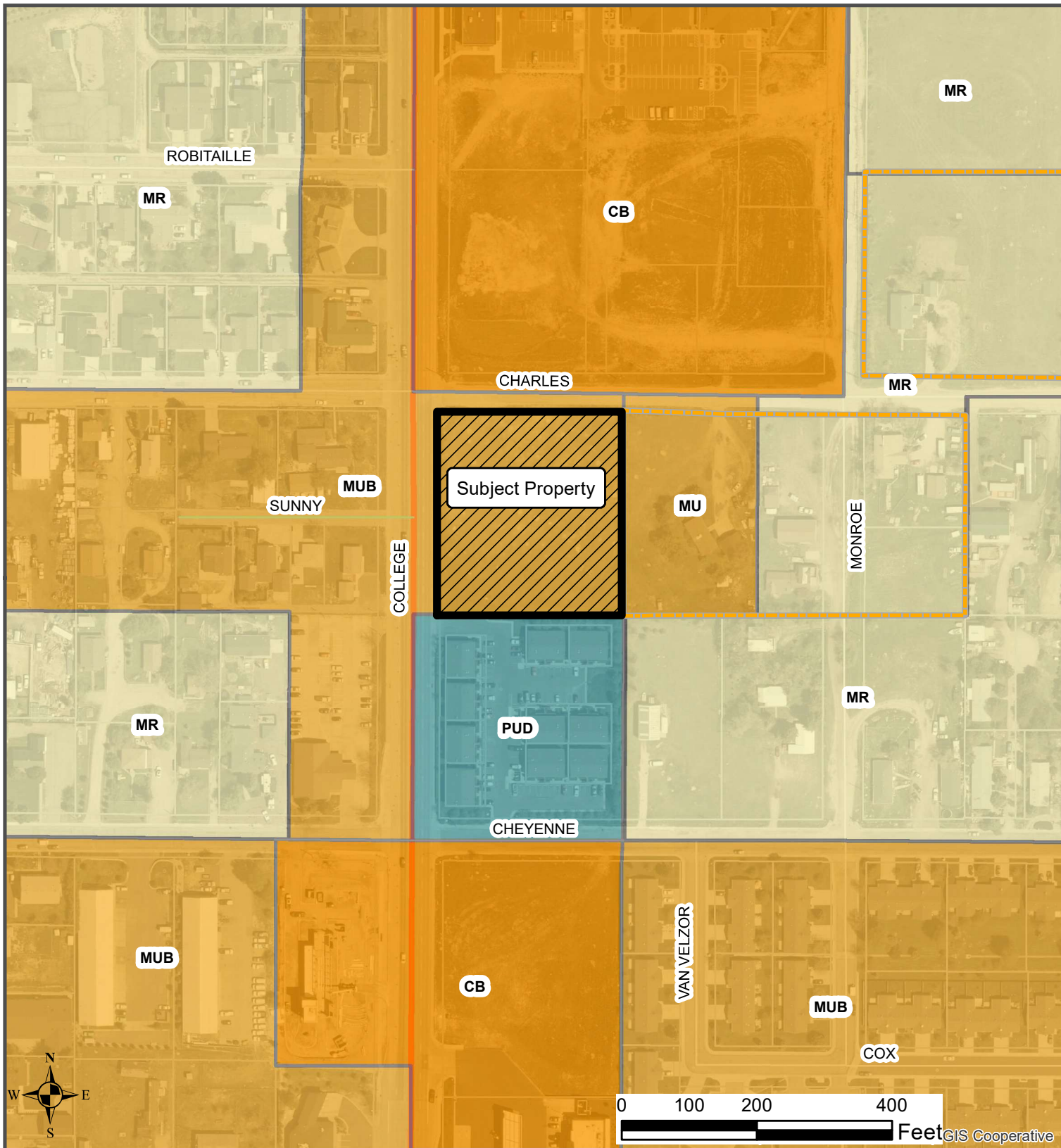
**STAFF RECOMMENDATION:**

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Staff recommends approval of the rezoning of the property from MUB to CB.

**ATTACHMENTS:**

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Maps

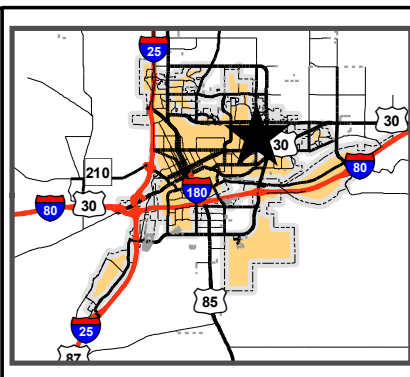
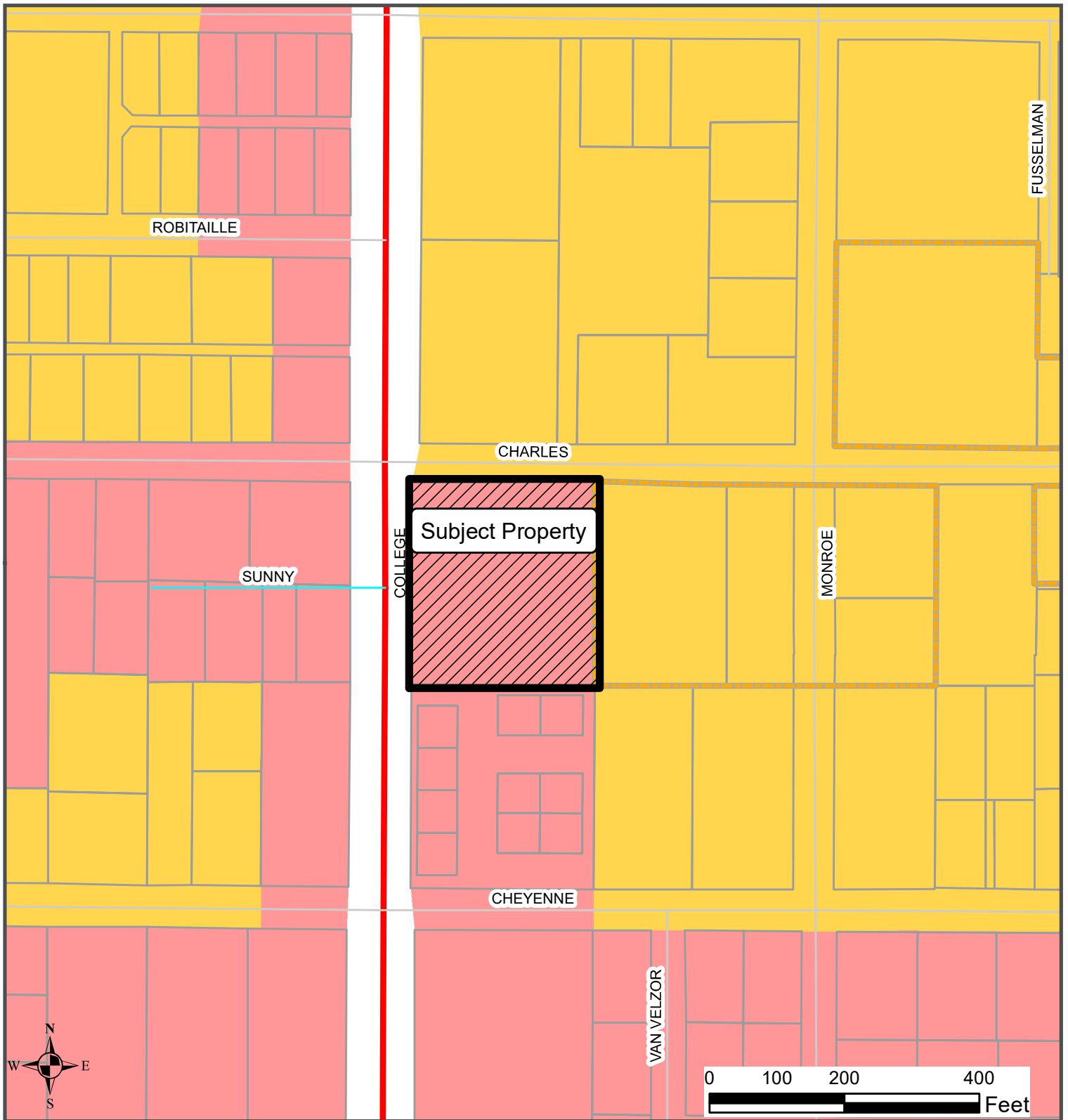


# Attachment 1: Zoning Map UDC-22-00029

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

## Legend

- |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li>Nov19_CityLimits</li> <li>Interstate</li> <li>Principal Arterial</li> <li>Minor Arterial</li> <li>Major Collector</li> <li>Minor Collector</li> <li>Local</li> <li>Private</li> <li>Platted not built</li> <li>HR / High Density Residential</li> <li>MR / Medium Density Residential</li> <li>LR / Low Density Residential</li> <li>NR-2 / Neighborhood Residential - Med. Density</li> <li>NR-3 / Neighborhood Residential - High Density</li> <li>AR / Agricultural Residential</li> </ul> | <ul style="list-style-type: none"> <li>A-1 / Agricultural and Rural Residential</li> <li>A-2 / Agricultural</li> <li>AG / City Agricultural</li> <li>MUR / Mixed Use Residential Emphasis</li> <li>CBD / Central Business District</li> <li>CB / Community Business</li> <li>NB / Neighborhood Business</li> <li>MU / Mixed Use - County</li> <li>MUB / Mixed Use Business Emphasis</li> <li>MUE / Mixed Use Employment Emphasis</li> <li>HI / Heavy Industrial</li> <li>LI / Light Industrial</li> <li>P / Public</li> <li>AD / Airport District</li> <li>PUD / Planned Unit Development</li> <li>X / Exempt</li> </ul> |
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## Attachment 2: Land Use Map UDC-22-00029

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

### Legend

|                    |                              |                           |
|--------------------|------------------------------|---------------------------|
| Nov19_CityLimits   | Agricultural/Rural           | Industrial                |
| Interstate         | Rural Residential            | Central Business District |
| Principal Arterial | Urban Transition Residential | Community Business        |
| Minor Arterial     | Urban Residential            | Public and Quasi-Public   |
| Major Collector    | Mixed-Use Residential        | Military/Federal          |
| Minor Collector    | Mixed-Use Commercial         | Open Space and Parks      |
| Local              | Mixed-Use Employment         |                           |
| Private            |                              |                           |
| Platted not built  |                              |                           |
| Ownership          |                              |                           |

# Planning and Development: Zoning Map Amendment Application

Submission date: **31 January 2022, 1:41PM**

Receipt number: **27**

Related form version: **10**

## General Information

Applicant Name: **Mark Stec o.b.o National Care Development LLC**

Applicant Address: **1695 12 Mile Road**

Applicant City: **Berkley**

Applicant State: **MI**

Applicant Zip Code: **48072**

Applicant Phone: **248-817-1751**

Applicant Email: **mstec@814cre.com**

Representative Name: **Mark Stec**

Representative Address: **1695 12 Mile Road**

Representative City: **Berkley**

Representative State: **MI**

Representative Zip Code: **48072**

Representative Phone: **248-817-1751**

Representative Email: **mstec@814cre**

Owner Name: **Albert N. Simpson**

Owner Address: **300 Gardenia Dr.**

|                                                        |                                                      |
|--------------------------------------------------------|------------------------------------------------------|
| Owner City:                                            | Cheyenne                                             |
| Owner State:                                           | WY                                                   |
| Owner Zip Code:                                        | 82009                                                |
| Owner Phone:                                           | 307-634-8431                                         |
| Owner Email:                                           | al-simpson@wyoming.com                               |
| Who is the primary contact regarding this application? | Applicant                                            |
| Letter of Authorization                                | <a href="#">Rezoning_Letter of Authorization.pdf</a> |
| Project Location (Street Address or General Location): | Southeast corner of N. College Dr. and Charles St.   |
| Assessor's Parcel ID number(s)                         | 14662741000300                                       |
| Total Project Area                                     | 1.89 acres                                           |
| Existing Zoning                                        | MUB - Mixed-use Business Emphasis                    |
| Requested Zoning                                       | CB - Community Business                              |

## Application-Specific Questions

|                                    |                                                                                                                                                                                                                                       |
|------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Written Statement                  | Request to rezone the 1.89 acre parcel of property located at the southeast corner of N. College Dr. and Charles St. from the current MUB, Mixed-use Business zoning district to the CB, Community Business district zoning district. |
| Zoning Map                         | <a href="#">Owner and Use.pdf</a><br><a href="#">SSS21345 T7-8 Sunnyside2_BndyTopo_110321.pdf</a><br><a href="#">Vicinity Map.pdf</a><br><a href="#">Zoning Map.pdf</a>                                                               |
| Notification Letter                | <a href="#">300 Foot Buffer Map.png</a><br><a href="#">300 Foot Notice Mailing List.csv</a><br><a href="#">neighbor-notification-letter_TEMPLATE.docx</a>                                                                             |
| Supporting Documents / Information | <a href="#">Rezoning Narrative_SE Corner of N. College and Charles.pdf</a>                                                                                                                                                            |

## Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

**Acknowledgement of this review criteria**

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

**Acknowledgement of this review criteria**

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

**Acknowledgement of this review criteria**

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

**Acknowledgement of this review criteria**

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

**Acknowledgement of this review criteria**

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

**Acknowledgement of this review criteria**

The review and recommendations of other reviewing bodies

**Acknowledgement of this review criteria**

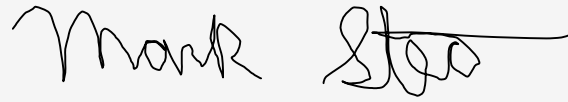
Whether the application will harm the public health, safety, or general welfare.

**Acknowledgement of this review criteria**

## Signature / Certification

Applicant Signature

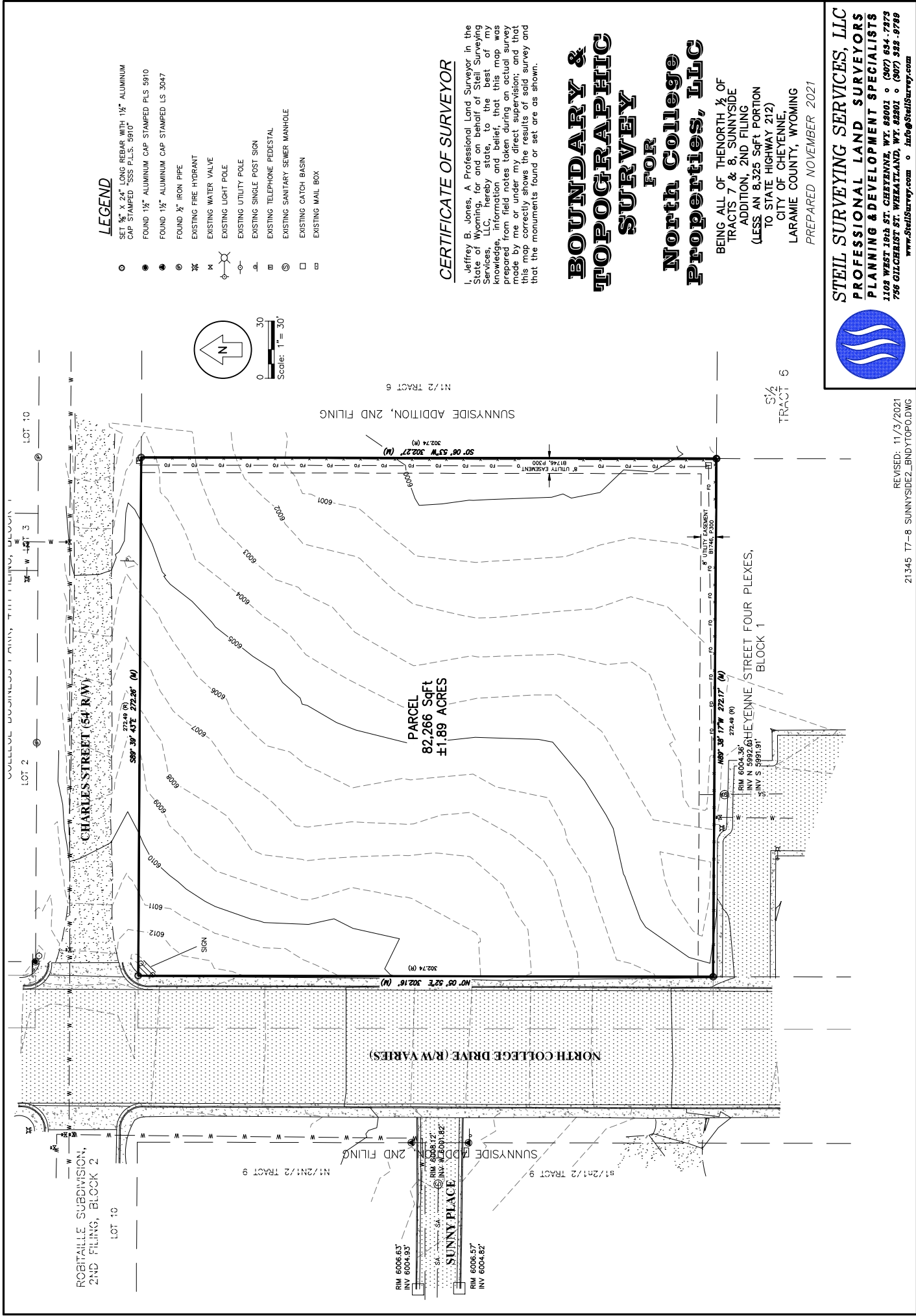
Name of signatory: Mark Stec

A handwritten signature in black ink that reads "Mark Stec". The signature is fluid and cursive, with a long horizontal stroke extending from the end of the last name.

[Link to signature](#)

Please enter an email address for an email receipt.

**mstec@814cre.com**



**LEGEND**

- SET ¾" X 24" LONG REBAR WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1½" ALUMINUM CAP STAMPED PLS 5910
- FOUND 1½" ALUMINUM CAP STAMPED LS 3047
- FOUND ½" IRON PIPE
- ✕ EXISTING FIRE HYDRANT
- ⊕ EXISTING WATER VALVE
- ⊕ EXISTING LIGHT POLE
- ⊕ EXISTING UTILITY POLE
- ⊕ EXISTING SINGLE POST SIGN
- ⊕ EXISTING TELEPHONE PEDESTAL
- ⊕ EXISTING SANITARY SEWER MANHOLE
- EXISTING CATCH BASIN
- EXISTING MAIL BOX



Scale: 1" = 30'

**CERTIFICATE OF SURVEYOR**

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

**BOUNDARY & TOPOGRAPHIC SURVEY FOR North College Properties, LLC**

BEING ALL OF THENORTH ¼ OF TRACTS 7 & 8, SUNNYSIDE ADDITION, 2ND FILING (LESS AN 8,325 Sqft PORTION TO STATE HIGHWAY 212) CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING

PREPARED NOVEMBER 2021



**STEEL SURVEYING SERVICES, LLC**  
**PROFESSIONAL LAND SURVEYORS**  
**PLANNING & DEVELOPMENT SPECIALISTS**  
1108 WEST 18th ST. CHEYENNE, WY. 82001 • (307) 634-7373  
756 GILBERT ST. WHEATLAND, WY. 82201 • (307) 323-9789  
www.SteelSurvey.com • info@SteelSurvey.com

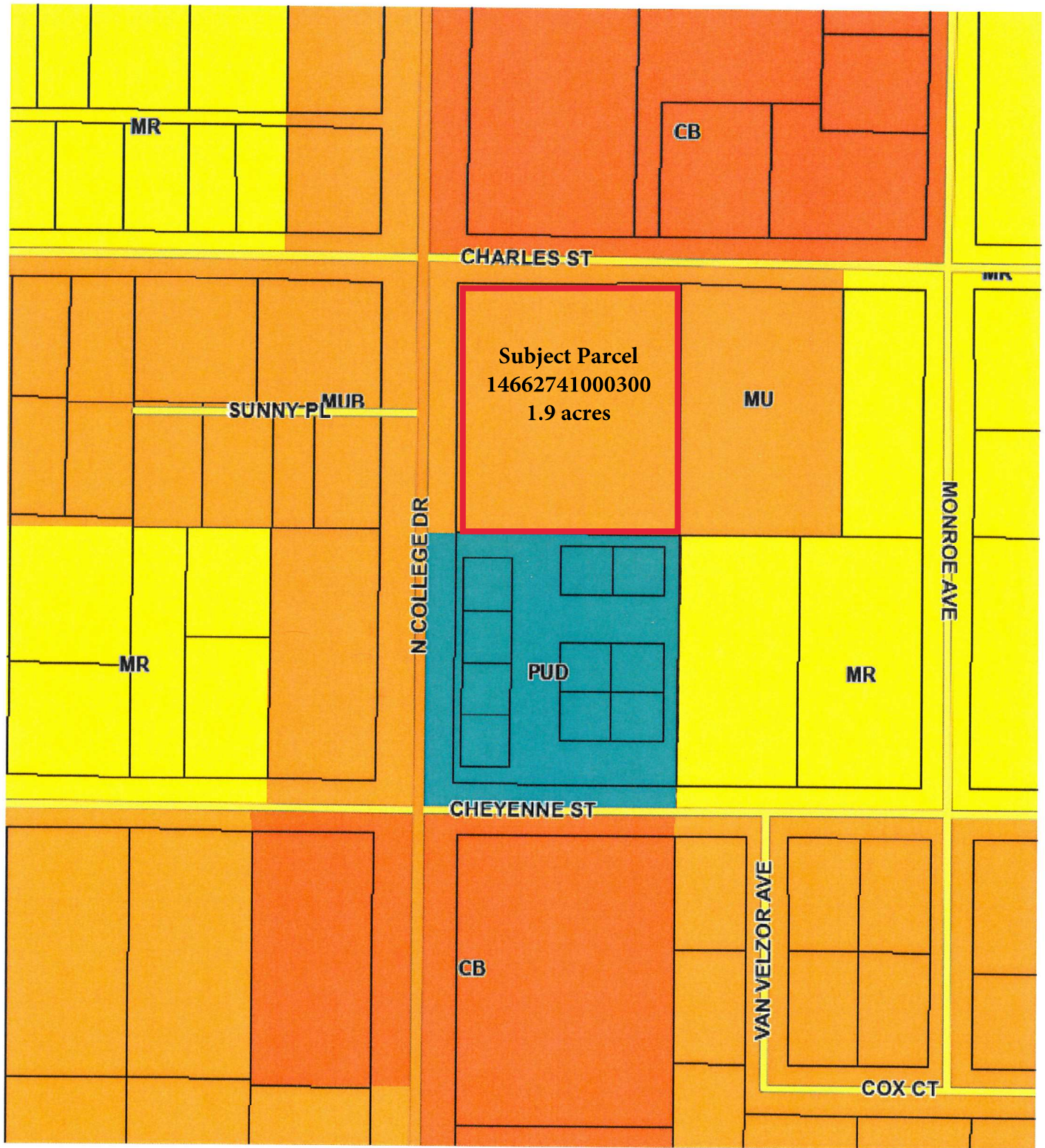
# Zoning Map

Southeast Corner of N. College Dr. and Charles Street

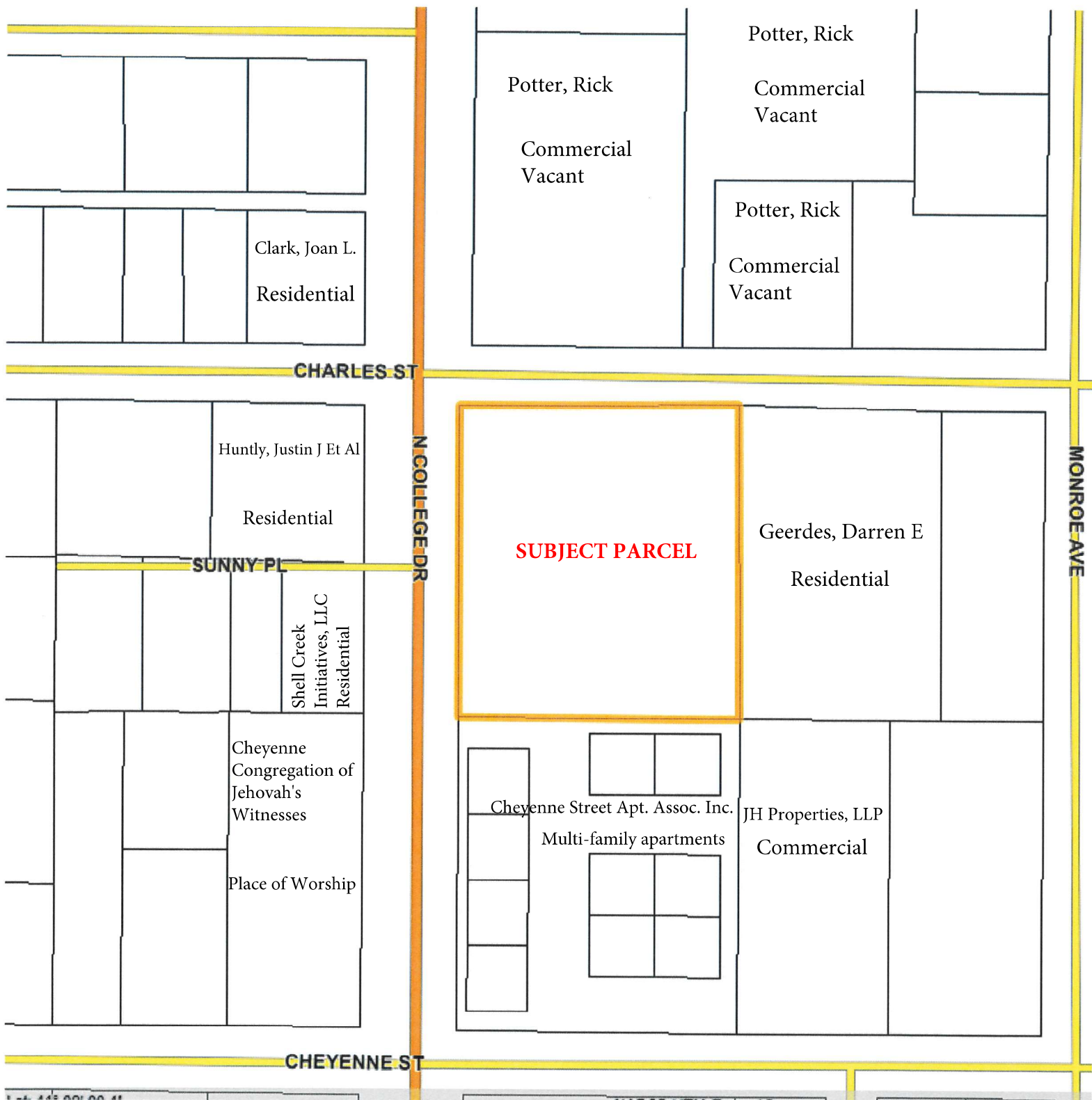
Parcel ID: 14662741000300

Existing Zoning: MUB, Mixed Use Business

Proposed Zoning: CB, Community Business



## SURROUNDING PARCEL OWNERSHIP AND USE MAP



# Vicinity Map

